3RD PARTY DOCUMENTATION FOR MALPRACTICE CLAIMS

For each malpractice claim that was settled/dismissed/closed in or after 1990:

- Complete the "Malpractice Claim Information" form below AND
- Provide at least one of the following forms of 3rd party documentation
- Correspondences must be on sender's letterhead and include:
  - The plaintiff's name (or identifying information)
  - Date of incident
  - Allegations

Pending Claims:

- **Legal Counsel Correspondence**
  *In addition to above requirements, the letter must contain a statement that the "case is defensible".

Finalized Claims: (In addition to the above requirements, all letters must contain the outcome of the claim and total indemnity paid on your behalf)

- **National Practitioner Data Bank Self-Query** (Claims settled/closed since 1990)
  *Customer Service 800-767-6732
  *https://icd.npdb-hipdb.com:663/ - 'self-queries' link
  *NPDB report cannot be older than ninety (90) days from the date you sign your application

- **Final Court Order and/or Settlement Agreement**
  *The Records Department in the county where the claim was filed can assist you in obtaining the Final Court Order and/or Settlement Agreement.

- **Insurance Company/Legal Counsel Correspondence**
  *Claims History/Loss Run

- **Facility/Hospital/Clinic Correspondence**
  *The Risk Management and/or Legal Department should be able to assist you in obtaining a letter from the Facility/Hospital/Clinic.

- **United States Government Correspondence**
  *If the claim occurred while working at a government facility and you were covered under the Federal Tort Claims Act, the Risk Management and/or Legal Department should be able to assist you in obtaining a letter from the Facility/Hospital/Clinic.

- **Patient Compensation Fund Correspondence**
  *If the claim occurred in a state in which you were enrolled in the Comp Fund, contact the Comp Fund to obtain a letter stating how much they paid on your behalf.
  Patient Compensation Fund correspondence will not be accepted as sole 3rd party documentation. One of the above must also be obtained.

At times, CenseoHealth's Quality Assurance team may require additional forms of 3rd party documentation for a single claim in the event that the originally submitted information is insufficient.

You may contact your Recruiting Consultant with any questions.

Thank you for your cooperation.

MALPRACTICE CLAIM INFORMATION

(Please make copies if additional forms are needed)

Claimant Name: ____

Location of Occurrence (city/state): ___________________________

Date of Occurrence: ____

Provider Case Narrative (use separate paper and write 'see attached narrative' if necessary):

____
____
____
____
____

Claim Outcome: (check the appropriate outcome)

_____ Pending
_____Withdrawn by Claimant
_____Dismissed/Settled/Closed with no Payment
_____Dismissed/Settled/Closed with Payment

Total Claim Payment (all defendants): $______________ Claim payment on your behalf: $_________________________

By Insurance Carrier: $____________
By Patient Compensation Fund (if applicable): $__________

Provider Signature:____

Print Name: ____

Date: ____

All of the above information is required.

Optional Information

Insurance Carrier Information (name, policy number, contact):

____
____

AGREEMENT NOT TO PERFORM

We are pleased to have you joining our team at CenseoHealth as an independent contractor. We strive to make this a great opportunity for you and we dedicate ourselves to making your assignment with us one of ease and comfort. Whereas to be able to provide you with industry leading malpractice and liability coverage, we will require that you sign this “agreement not to perform”. This document is an agreement between you and CenseoHealth stipulating that you will only be providing History and Physical evaluations for scheduled members and that you will not be prescribing any drugs or performing any procedures on behalf of CenseoHealth. In the case of an emergency during an evaluation please call the plan at the member services number provided to you or 911.

____

Provider – Please Print

____

Provider – Signature

____

Date

CenseoHealth, LLC

Independent Contractor Agreement for Providers

This Independent Contractor Agreement (the "Agreement") dated ________________________ shall be by and between CenseoHealth, LLC, a Texas based company and ____________________________ ("Provider"). CenseoHealth shall act as the agent for CenseoHealth clients (Clients) to arrange for medical services to be provided on a Locum Tenens basis and Provider desires to provide medical services to CenseoHealth's contracted Clients on a Locum Tenens basis. Therefore, both parties agree to the terms below:

Payments and Expenses:

1.1 **Rates**: Rate will be $100 for each completed member assessment that passes CenseoHealth Quality Assurance. The parties agree that this rate represents the fair market value of the physician's evaluation services. CenseoHealth Quality Assurance receives an approximate payment of $375 from Plan to perform the evaluation and the parties acknowledge that $100 is the portion of the fee that specifically relates to the performance of the evaluation by the physician. The remainder of the fee pays for services performed by CenseoHealth Quality Assurance to ensure the Plan gets the information necessary to obtain a full evaluation of the patient, including but not limited to the following: Analysis of plan membership using claims and other files to determine suitability of members for evaluation - $40; Member and provider contacts and education - $40; Quality assessment of completed evaluations - $25; Coding of completed evaluations - $20; Collation of data from completed evaluations and assembly of collated data into a data warehouse - $45; Generation of clinical and financial reports based on data warehouse - $45; and Sales and administrative activity regarding business arrangement with Medicare Advantage plans - $60.

1.2 **Housing**: CenseoHealth will provide reasonable housing accommodations and per diem on behalf of Client while on assignment and for en route housing as needed. Provider will be responsible for all other personal expenses.

1.3 **Release and Authorization**: Provider authorizes CenseoHealth to release any information required for privileges relating to an assignment, including drug screening results. In the course of presenting Provider to Clients for potential services, CenseoHealth will reproduce Provider's curriculum vitae and use good faith efforts to prevent any errors in such reproduction. Provider agrees to release and hold CenseoHealth harmless from all liability for any such errors made in reproduction.

1.4 **Licensure**: Provider agrees to provide accurate information in a timely manner to CenseoHealth and Client to meet CenseoHealth Provider Standards and/or state licensure application requirements. CenseoHealth shall assist Provider in obtaining necessary documentation. Provider may be required to submit to drug screening. Provider shall have a current state license and shall be eligible to provide services to Medicare beneficiaries.

1.5 **Malpractice:** History: Provider shall furnish a record of all ongoing malpractice claims and any settled claims.

Provider Duties:

2.1 **Responsibilities**: Provider shall complete health risk assessment and HIPAA training as detailed by CenseoHealth. This training may change and may be repeated for different CenseoHealth clients. Provider will be expected to demonstrate adequate understanding of the appropriate training.

2.2 **Member relations**: Provider is expected to perform health risk assessments only for Medicare members and is not expected to provide care for that member's medical problems or to enter into a physician patient relationship with that member.

2.3 **Records**: Provider shall perform health risk assessments using an evaluation tool provided by CenseoHealth. The evaluation is to be completed according to standards defined by CenseoHealth; however, the evaluation tool shall serve as a record of Provider's evaluation of the member and shall not under any circumstances direct or influence the Provider's provision of professional services to members. Evaluations not completed according to those standards will be deemed deficient and will be repeated by Provider. Provider also agrees and understands that Provider is responsible for the safekeeping of all records and protected health information (PHI) in Provider's possession. Provider agrees to be liable for the loss of any such information and agrees to reimburse CenseoHealth for the cost and expenses associated with such loss.

2.4 **Record Submittal**: All CenseoHealth providers must send in the completed evaluation forms **within three days** of the evaluation date. Any forms received more than 10 days after the evaluation date are subject to non-payment.

2.5 **Limitations**: Neither party shall be liable for damages or default in performing its respective obligations under this agreement if such is out of either parties control, including government restrictions, flood, fire, strikes, or acts of thirds parties. Each party shall keep the other informed at all times concerning matters causing delay or work stoppage.

2.6 **Confidentiality**: Provider agrees that the terms of this agreement are confidential and shall not be disclosed to third parties. In addition, Provider agrees that any training or evaluation tools are the property of CenseoHealth and are confidential. Provider also agrees that he will not disclose during the term of this Agreement or thereafter, disclose to any person, firm, corporation, association or entity for his own benefit or for the benefit of others, any confidential information of CenseoHealth, including, without limitation, information pertaining to CenseoHealth's marketing and recruiting, operational practices, clients, patients, financial information, referral sources and other business contacts.

2.7 **Notification of Disciplinary Action**: Provider agrees to notify CenseoHealth immediately of any disciplinary or quality assurance proceedings or investigations involving Provider, including but not limited to: licensing boards, quality assurance committees, hospitals or other medical entities, medical societies, centers for Medicare and Medicaid Services, or claims of suits. Provider also agrees to immediately notify CenseoHealth in the event any such proceedings or investigations are pending or are instituted, regardless of relevancy to Client or CenseoHealth.

2.8 **Notification of Litigation**: Provider shall immediately notify CenseoHealth in writing of any potential or actual malpractice claims involving Provider, whether such claim took place before or during this agreement or related to services in connection with this agreement. Provider also agrees to notify CenseoHealth immediately and in writing of any situation relating to services provided under this agreement that Provider has any reason to believe may lead to a malpractice claim. Provider understands and accepts that failure to comply with these terms could lead to Provider being eliminated from CenseoHealth's eligible roster.

2.9 **Notifications**: All notices by Provider shall be in writing to CenseoHealth via certified mail.

General Terms

3.1 **Term**: This agreement shall begin on the effective date and shall continue until terminated as set forth in this agreement or until a new agreement is entered into between Provider and CenseoHealth.

3.2 **Termination**: Either party may terminate this agreement and Provider or Client may terminate any assignment with or without cause by providing at least a 30 day written notice prior to the start date of assignment. Provider agrees to provide Locum Tenens services at the location designation by Client during the entire notice period. CenseoHealth, nor Client, shall be obligated to pay Provider for any scheduled period for services not actually performed by Provider during such period.

3.2.1 This agreement may be terminated by CenseoHealth, at its discretion, without prior notice to Provider upon the occurrence any of the following events:

a) Provider becomes disqualified to practice medicine in any state or Provider's license or hospital privileges are revoked, suspended, or restricted, whether voluntarily or involuntarily.

b) CenseoHealth Client in which Provider provides services requests that provider be removed for reasons alleged or actual, relating to competence or professional conduct.

c) Provider fails to qualify or becomes ineligible for coverage under the terms of CenseoHealth's malpractice insurance policy and is not covered by other malpractice insurance deemed acceptable by CenseoHealth.

d) Provider fails to perform the duties required by this agreement, violates its terms, or refuses to cooperate with CenseoHealth.

e) CenseoHealth determines that Provider provided false or misleading information or omits relevant information on Provider application materials.

3.2.2 If Client fails to meet financial obligations to CenseoHealth for services performed by Provider, Provider understands that assignments may be canceled. Under no circumstances will CenseoHealth be obligated to pay for services for which CenseoHealth has not received payment from Client. Provider will not be entitled to payment for any scheduled services not actually performed on a canceled assignment; however, CenseoHealth will use its best efforts to collect amounts due to provider for canceled term inside of 30 days.

3.3 **Recruitment**: For a period of 2 years after this agreement is terminated for any reason, if Provider is recruited and accepts a permanent position or locum tenens assignment with Client or Client affiliate, Client shall be responsible for paying a recruitment fee. Provider agrees to immediately notify CenseoHealth in the event Provider accepts an offer with Client or Client's affiliate. If Client or third party refuses to pay such recruitment fee, Provider agrees to refuse offer or agrees to pay the recruitment fee of $30,000 to CenseoHealth plus any attorneys' fees incurred in the collection of such amounts.

3.4 **Independent Contractor Status**: CenseoHealth acts as a placement agency for Client and Provider is an independent contractor. It is not the intent of the parties to form a relationship of employee and employer, and the parties disclaim any such intention. CenseoHealth is not licensed to practice medicine, does not itself practice medicine or provide medical services or hold itself out as doing so, and shall not influence or direct Provider's professional medical judgment. Provider agrees that CenseoHealth shall not provide health insurance, worker's compensation or unemployment benefits for Provider. Additionally, Provider will not be treated as an employee for tax purposes and CenseoHealth shall not make or withhold state or federal tax payments unless required to do so by law. CenseoHealth shall deliver Form 1099 to Provider annually within the required time by law.

Contractor acknowledges that, as an independent contractor to the Company, Contractor is not entitled to participation in, coverage under, or benefits from the Company or any of its employee benefit plan funds, programs or arrangements sponsored or maintained by the Company for its employees. In the event Contractor's relationship with the Company is determined to be as an "employee" of the Company rather than as an independent contractor to the Company, Contractor hereby expressly waives and declines, from the date hereof, participation in, coverage under, or benefits from the Company or any of its employee benefit plans, funds, programs or arrangements sponsored or maintained by the Company for its employees.

3.5 **Indemnification**: Provider hereby indemnifies CenseoHealth, and shall hold CenseoHealth harmless from any losses, damages, liabilities, and claims not covered by CenseoHealth's liability insurance that are incurred by CenseoHealth arising out of or as a result of Provider rendering or failing to render medical services during the term of this agreement.

3.6 **Governing Law**: This agreement shall be governed by and interpreted in accordance with the laws of the State of Texas. Exclusive jurisdiction and venue of any dispute or legal action relating to this agreement shall lie in the state or federal courts of Dallas County, Texas.

3.7 **Amendments**: Any and all changes to agreement shall be agreed to and approved and signed by both parties including both party's signatures.

3.8 **Severability**: Each party acknowledges and agrees that each provision of this agreement shall be enforceable independently of the other. In the event, any provision is determined to be unenforceable for any reason, the parties agree to substitute a comparable provision dealing with the same subject matter that mimics the effect and intent of the unenforceable provision to the maximum extent of permissible law.

In witness whereof, the parties have executed this agreement as of the effective date.

CenseoHealth	**Provider**
By: ________________________	Provider: ________________________
CenseoHealth	
4055 Valley View Lane	City, St. Zip: ____________________
Suite 400	
Dallas, TX 75244	SS#, Tax ID#: ____________________

AMENDMENT NO. 1
INDEPENDENT CONTRACTOR AGREEMENT FOR PROVIDERS

This *Amendment No. 1 to the Independent Contractor Agreement for Providers* ("Amendment") is entered into by and between the physician whose name is set forth on the signature page ("Provider") and Censeo Health LLC ("CenseoHealth") and is effective as of the date set forth in paragraph 6. Provider and CenseoHealth, each a "Party", are sometimes referred to collectively as the "Parties".

RECITALS

WHEREAS, Provider and CenseoHealth entered into the *CenseoHealth, LLC Independent Contractor Agreement for Providers* ("Agreement"); and

WHEREAS, the Parties desire to amend the Agreement in order to add certain provisions required by CenseoHealth's contracted health plans in order comply with the rules and regulations of the Centers for Medicare and Medicaid ("CMS").

NOW THEREFORE, and in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged and stipulated for all purposes, the Parties agree to amend the Agreement as described herein.

AGREEMENT

1. New paragraph 2.10, ***Ineligible Persons***, is added to the Agreement as follows:

> "2.10. **Ineligible Persons.** Provider warrants and represents that at the time of entering into this Agreement and/or when providing services to or for the benefit of CenseoHealth under this Agreement, he/she is not an ineligible persons identified on the General Services Administrations' List of Parties Excluded from Federal Programs (available through the internet at https://www.epls.gov/) and the HHS/OIG List of Excluded Individuals/Entities (available through the internet at http://exclusions.oig.hhs.gov/). If required by CenseoHealth, Provider agrees to sign a certification consistent with the meaning and requirements of this provision. In the event Provider becomes an ineligible person after entering into this Agreement or otherwise fails to disclose his/her ineligible person status, Provider shall (a) immediately notify CenseoHealth of such ineligible person status and (b) immediately cease involvement with CenseoHealth's business operations. Notwithstanding any other provision in this Agreement, CenseoHealth retains the right to provide notice of immediate termination of the Agreement to Provider in the event it receives notice of Provider's ineligible person status."

2. New paragraph 2.11, ***Conflict of Interest***, is added to the Agreement as follows:

> "2.11. **Conflict of Interest.** To the extent required by the Centers for Medicare & Medicaid, which is the agency within the U. S. Department of Health and Human Services ("CMS") or CenseoHealth, Provider agrees to certify that he/she will sign a conflict of interest statement, attestation, or certification at the time of contracting and annually thereafter, or as requested by

CenseoHealth, certifying that he/she is free from any conflict of interest in administering or delivering Medicare Advantage and/or Part D benefits."

3. New paragraph 2.12, ***Illegal Remunerations***, is added to the Agreement as follows:

> "2.12. **Illegal Remunerations.** Provider specifically represents and warrants that the activities to be performed under the Agreement are not considered illegal remunerations (including kickbacks, bribes or rebates) as defined in §1128B(b) of the Social Security Act."

4. New paragraph 2.13 ***Medicare Advantage-Compliance Training, Education and Communications*** is added to the Agreement as follows:

> "2.13. **Medicare Advantage-Compliance Training, Education and Communications.** To the extent applicable and in accordance with, but not limited to 42 C.F.R. §§422.503(b)(4)(vi)(C)&(D), Provider agrees and certifies that he/she shall participate in applicable compliance training, education and/or communications as reasonably requested by CenseoHealth or its client health plans annually or as otherwise required by CenseoHealth, its client health plans or applicable law. Provider and CenseoHealth shall be responsible for documenting attendance and completion of such training. Upon notice, Provider shall provide such documentation to CenseoHealth, unless otherwise not required by CMS regulation. In addition, the training requirement set forth herein is not required for providers or suppliers who have met the fraud, waste and abuse certification requirements through enrollment into the Medicare program, as those providers and/or suppliers are deemed to have met that portion of the fraud waste and abuse training required by CMS."

5. New paragraph 2.14 ***Material Changes in Delegated Functions*** is added to the Agreement as follows:

> "2.14. **Material Changes in Delegated Functions**. In the event there is any material change in Provider's abilities to perform the functions set forth in this Agreement, Provider shall notify in writing CenseoHealth's President within two (2) business days. Notwithstanding any other provision in this Agreement, CenseoHealth retains the right to provide notice of immediate termination of the Agreement in the event it receives notice of any material change in Provider's abilities to perform the functions set forth in this Agreement."

6. This Amendment shall be effective on **July 9, 2012** ("Amendment Effective Date").

7. All remaining paragraphs of the Agreement shall remain unchanged.

[Signature Page Follows]

IN WITNESS WHEREOF, the Parties hereto have executed this Amendment to the Agreement as of the Amendment Effective Date.

CENSEOHEALTH	**PROVIDER**
______________________________	______________________________
(Signature)	**(Signature)**
Bales Nelson, its	______________________________________
	(Print Name)
President	
July 9, 2012	July ________, 2012
	(Date Executed)

END OF AMENDMENT NO. 1

CODE OF CONDUCT

PURPOSE
This Code of Conduct has been adopted by CenseoHealth to provide standards by which all physicians and employees of CenseoHealth will conduct themselves in order to protect and promote organization-wide integrity and to enhance CenseoHealth's ability to achieve its mission.

INTRODUCTION
The Code of Conduct explains the policies of CenseoHealth and provides additional guidance to physicians and employees. The Code of Conduct is to be distributed periodically to all physicians and employees. The Code of Conduct must also be distributed annually to directors, officers, volunteers and medical providers who serve your patients on any contract level basis. All persons who serve patients and support these services are responsible for ensuring that their behavior and activities are consistent with the Code of Conduct.
As used in this Code of Conduct, the term Censeo refers to CenseoHealth LLC and each of its divisions, subsidiaries and operating or business units. The terms "officer," "director," "employee," and "agent" can include any person who fills such a role or provides services on behalf of Censeo or any of its divisions, subsidiaries, or operating or business units.

CODE OF CONDUCT
Ethics and Integrity are primary responsibilities of physicians and employees of CenseoHealth (Censeo). With this Code of Conduct, Censeo conveys clear expectations for quality and integrity in business conduct and operations. This Code of Conduct specifically addresses our policies on business behavior and relations that we have with various persons and entities in the course of our activities.

Principle 1 - Legal Compliance
Censeo employees, agents and independent contractors agree to obey the law.
These standards are neither exclusive nor complete. Employees are required to comply with all applicable laws, whether or not specifically addressed in these policies. If questions regarding the existence of, interpretation or application of any law arise, they should be directed to the Censeo Compliance Manager.

Standard 1.1 – Government
As a provider to beneficiaries of government programs, Censeo has a special obligation to the United States and to the public at large. The penalties for violating government contracts laws can be severe in criminal penalties and fines. In addition, providers can be "debarred", i.e., prohibited from providing services to these beneficiaries.
Censeo is committed to compliance with the letter and the spirit of government contracts, laws and regulations. Thus, even the appearance of impropriety will not be tolerated.

Standard 1.2 - Fraud and Abuse
Censeo expects its employees, related entities, contractors and subcontractors to refrain from conduct that may violate the fraud and abuse laws. These laws prohibit:

- direct, indirect or disguised payments in exchange for the referral of patients;
- the submission of false, fraudulent or misleading claims to any government entity or third party payor, including claims for services not rendered, claims which characterize the service differently than the service actually rendered, or claims which do not otherwise comply with applicable program or contractual requirements; and
- making false representations to any person or entity in order to gain or retain participation in a program or to obtain payment for any service.

Standard 1.3 – Antitrust
Antitrust violations carry severe penalties. Violations of federal antitrust laws can result in criminal and civil liability. Employees are prohibited from:
- agreements to fix prices, group boycotts, customer or market allocations among competitors, certain types of exclusive dealing arrangements, and tying arrangements;
- abuse of monopoly power, e.g., the ability or attempt (by a single entity) to control prices or to exclude competitors from a single market; and
- unfair trade practices including bribery, misappropriation of trade secrets, deception, intimidation and similar unfair practices.

Employees are expected to seek advice from the Censeo Compliance Manager when confronted with business decisions involving a risk of violation of the antitrust laws.

Standard 1.4 – RICO
The Racketeer Influenced and Corrupt Organizations Act (RICO) covers many transactions that might occur in the health care industry. Examples include:
- Kickback schemes
- Money laundering
- Misrepresentation of pricing terms to members

Criminal penalties for RICO violations include substantial fines and prison terms of up to 20 years. There are also broad civil remedies available. Successful plaintiffs can obtain treble damages, reasonable attorneys' fees and costs.

Standard 1.5 - Tax
Censeo will abide by all relevant tax laws, will accurately report payments to appropriate taxing authorities, and will file all tax and information returns in a manner consistent with applicable laws.

Standard 1.6 – Health, Safety and Environmental
Censeo will comply with all applicable health and safety laws and regulations. CenseoHealth aims to have an injury and illness-free work environment for the benefit of employees, members and clients. We ask that all those working for or with CenseoHealth, perform work in a way that will protect themself, co-workers, and the public. Comply with all safety and health rules and procedures at all times. Safety compliance concerns can be reported by calling Meaghan Hunter at 214-932-1409. In addition, Censeo will manage and operate its business in a manner that respects the environment and conserves natural resources. Censeo employees will strive to utilize resources appropriately and efficiently, to recycle where possible and otherwise dispose of all waste in accordance with applicable laws and regulations, and to work cooperatively with the appropriate authorities to remedy any environmental contamination for which Censeo may be responsible.

Standard 1.7 – Discrimination
Censeo believes that the fair and equitable treatment of employees, patients and other persons is critical to fulfilling its vision and goals. Accordingly, Censeo will:
- enroll members and treat patients without regard to the race, color, religion, sex, ethnic origin, age or disability of such person, or any other classification prohibited by law; and
- recruit, hire, train, promote, assign, transfer, layoff, recall and terminate employees based on their own ability, achievement, experience and conduct without regard to race, color, religion, sex, ethnic origin, age or disability, or any other classification prohibited by law;

Harassment or discrimination on the basis of sex, race, color, disability, age, religion or ethnic origin or disability or any other classification is prohibited. Each allegation of harassment or discrimination will be promptly investigated in accordance with applicable human resource policies.

Standard 1.8 – Document Retention
Censeo has a document retention policy that describes which documents need to be retained and the length of time they must be retained. Censeo employees cannot alter, destroy or discard information before those periods have elapsed or that may be related to any investigation, regulatory matter or dispute, even if the document retention policy indicates that the document can be destroyed.

Standard 1.9 – Lobbying/Political Activity
No individual may make any agreement to contribute any money, property, or services of any officer or employee of Censeo's expense to any political candidate, party, organization, committee or individual in violation of any applicable law. Officers, directors, and employees may personally participate in and contribute to political organization or campaigns, but they must do so as individuals, not as representatives of Censeo, and they must use their own funds.

Principle 2 – Business Ethics
Censeo employees will accurately and honestly represent Censeo and will not engage in any activity or scheme intended to defraud anyone of money, property or honest services.

2.1 - Honest Communication
Censeo requires candor and honesty from individuals in the performance of their responsibilities and in communication with Censeo attorneys and auditors. Employees are prohibited from making false or misleading statements to any patient, person or entity doing business with Censeo about other patients, persons or entities doing business or competing with Censeo, or about the products or services of Censeo or its competitors.

2.2 - Misappropriation of Proprietary Information
Misappropriation of confidential or proprietary information belonging to another person or entity will not be tolerated. All Censeo employees are responsible for ensuring that they do not copy documents or computer programs in violation of applicable copyright laws or licensing agreements. Employees are not allowed to use confidential business information obtained from competitors in any manner likely to provide an unfair competitive advantage to Censeo.

2.3-Fair Dealing
We have a history of succeeding and growing through honest business competition. We do not seek competitive advantages through illegal or unethical business practices. Each officer and employee should endeavor to deal fairly with CenseoHealth's clients, physicians, suppliers, competitors and employees. No officer or employee should take unfair advantage of anyone through manipulation, concealment, abuse of privileged information, misrepresentation of material facts, or any unfair dealing practice.

Principle 3 - Confidentiality
Censeo employees are required to understand that certain information is confidential and cannot be released without prior approval.
Every Censeo employee has an obligation to actively protect and safeguard confidential, sensitive and proprietary information in a manner designed to prevent the unauthorized disclosure of information.

3.1 - Patient/Member Information
All Censeo employees have an obligation to conduct themselves in accordance with the principle of maintaining the confidentiality of patient and member information in accordance with all applicable laws and regulations. Specifically, Censeo employees must

- Safeguard the privacy of any information that identifies a particular patient. Information from, or copies of, records may be released only to authorized individuals as allowed under HIPAA.
- Ensure that unauthorized individuals cannot gain access to or alter patient records.
- Ensure that original medical records are released only in accordance with federal or state laws, court orders or subpoenas.
- Maintain records and information in an accurate and timely manner.
- Ensure timely access by patients to their records and to information that pertain to them.
- Abide by all federal and state laws regarding confidentiality and disclosure for mental health records, medical records, other health information and enrollee information.

3.2 - Proprietary Information
Information, ideas and intellectual property assets of Censeo are important to organizational success. Information pertaining to Censeo's competitive position or business strategies, payment and reimbursement information, and information relating to negotiations with employees or third parties should be protected and shared only with employees having a need to know such information in order to perform their job responsibilities. Employees should exercise care to ensure that intellectual property rights, including patents, trademarks, copyrights and software are carefully maintained and managed to preserve and protect their value.

3.3 - Personnel Actions/Decisions
Salary, benefit and other personal information relating to employees must be treated as confidential. Personnel files, payroll information, disciplinary matters and similar information must be maintained in a manner designed to ensure confidentiality in accordance with applicable laws. Employees will exercise due care to prevent the release or sharing of information beyond those persons who may need such information to fulfill their job function.

3.4 – News and Media Inquiries
Immediately refer any news media inquiries to Meaghan Hunter at 972-715-3803.

Principle 4 - Conflicts of Interest
Directors, officers, committee members and key employees owe a duty of undivided and unqualified loyalty to Censeo. These individuals may not use their positions to profit personally or to assist others in profiting in any way at the expense of Censeo.
Censeo's senior level individuals are expected to conduct themselves in a manner that avoids actual impropriety and/or the appearance of impropriety that might arise from the influence of their conduct on business decisions of Censeo, or from disclosure or private use of business affairs or plans of Censeo.

4.1- Reporting Outside Financial Interests
Upon request, Censeo physicians and employees shall report outside financial interests of their own or of an immediate family member (spouse, grandparents, parents, siblings, children, grandchildren, and in-laws) which might constitute a conflict of interest. While not inclusive, the following will serve as a guide to the types of activities that might constitute a conflict of interest.

4.1.1 Conduct of any business not on behalf of Censeo with any vendor, supplier, contractor, or agency that does business with Censeo or any of their officers or employees including members of their immediate family

4.1.2 Representation of Censeo in any transaction in which the director, officer, or employee has a substantial personal interest.

4.1.3 Disclosure or use of confidential, special or inside information of or about Censeo for personal profit or advantage.

4.1.4 Competition with Censeo, directly or indirectly, in the purchase, sale or ownership of property or property rights or interests, or business investment opportunities.

4.2– Participation on Boards of Directors/Trustees

4.2.1 Upon request, an employee shall disclose service as a member of the Board of Directors/Trustees of any organization.

4.2.2 A director, officer, or employee must obtain approval from the President/CEO prior to serving as a member of the Board of Directors/Trustees of any organization whose interests may conflict with those of Censeo.

4.2.4 Censeo has the right to prohibit membership on any Board of Directors/Trustees where such membership might conflict with the best interest of Censeo.

4.2.5 The Censeo general counsel will review all questions regarding whether Board participation might present a conflict of interest.

4.3—Honoraria
With prior approval of the general counsel, physicians and employees are encouraged to participate as faculty and speakers at educational programs and functions related to their work. For activities related to work for Censeo conducted during paid time, the physicians and employees shall turn over all honoraria (payments) to Censeo. For activities during leave from work, physicians and employees may keep honoraria. Also, the physicians and employee may keep honoraria related to hobbies or outside work not in conflict with work for Censeo.

Principle 5 - Business Relationships
Business dealings with vendors, contractors and other third parties must be transacted free from offers or solicitation of gifts and favors or other improper inducements that would affect Censeo's business in any way.

5.1 - Gifts and Gratuities
It is Censeo's desire to at all times preserve and protect its reputation and to avoid the appearance of impropriety.

1. Gifts from Patients or Members. Physicians and employees are prohibited from soliciting tips, personal gratuities or gifts from patients or members and from accepting monetary tips or gratuities.
2. Gifts from Existing Vendors. Physicians and employees may retain gifts of nominal value from vendors. (Censeo has made no attempt to define "nominal" as a specific dollar value. Rather, Censeo expects its employees to exercise good judgment and discretion in accepting gifts). Physicians and employees may not accept excessive gifts, meals, expensive entertainment or other offers of goods or services that have more than a nominal value, and they may not solicit gifts from vendors, suppliers, contractors or other persons. Questions on acceptance of gifts should be made to the President/CEO before acceptance.

5.2 - Contracting
Employees may not utilize "insider" information for any business activity conducted by or on behalf of Censeo. All business relations with contractors must be conducted at arm's length both in fact and in appearance and in compliance with Censeo policies and procedures. Physicians and employees must disclose personal relationships and business activities with contractor personnel, which may be construed by an impartial observer as influencing the physicians' or

employees' performance or duties. Physicians and employees have a duty to obtain clarification from management employees on questionable issues that may arise and to comply with Censeo's conflict of interest policy.

5.3 - Business Inducements

Censeo prohibits employees from seeking to gain any advantage through the improper use of payments, business courtesies or other inducements. Offering, giving, soliciting or receiving any form of bribe or other improper payment –money, services or other things of value with the expectation of influencing the judgment or decision-making of any purchaser, supplier, customer, government official or other person—by a director, officer, or employee of Censeo is absolutely prohibited. Any such conduct must be reported immediately to the Censeo Compliance Manager.

Appropriate commissions, rebates, discounts and allowances are customary and acceptable business inducements provided that they are approved by Censeo general counsel and that they do not constitute illegal or unethical payments. Any such payments must be reasonable in value, competitively justified, properly documented, and made to the business entity to which the original agreement or invoice was made or issued. Such payments should not be made to individual employees or agents of business entities.

In addition, employees may provide gifts, entertainment and meals of nominal value to Censeo customers, current and prospective business partners and other persons when such activities have a legitimate business purpose, and are reasonable and consistent with all applicable laws.

Principle 6 - Protection of Assets

Censeo employees cannot use Censeo funds or property for their personal use.

6.1 - Internal Control

Censeo has established control standards and procedures to ensure that assets are protected and properly used and that financial records and reports are accurate and reliable. All physicians and employees of Censeo share the responsibility for maintaining and complying with required internal controls.

6.2 - Financial Reporting

All financial reports, accounting records, research reports, expense accounts, time sheets and other documents must accurately and clearly represent the relevant facts or the true nature of a transaction. Improper or fraudulent accounting, documentation or financial reporting is contrary to the policy of Censeo and may be in violation of applicable laws.

6.3 - Travel and Entertainment

Employees must comply with Censeo policies relating to all purchasing procedures, payment limits and travel and entertainment expense.

6.4 - Personal Use of Corporate Assets

Employees are prohibited from the unauthorized use or taking of Censeo's equipment, supplies, materials or services. Prior to engaging in any activity on company time which will result in remuneration to the physician or employee for the use of Censeo's equipment, supplies, materials or services for personal or non-work related purposes, physicians and employees shall obtain the approval of the appropriate business unit or other management of Censeo.

6.5 – Employee Privacy

CenseoHealth retains the right to monitor its assets and work environments in compliance with applicable federal, state, and local law. It monitors to promote safety, prevent criminal activity, investigate alleged misconduct and security violations, manage information systems, or for other business reasons. Even though limited personal use of company assets is permitted, you should have no expectation of privacy when you use a CenseoHealth computer, voicemail, or other systems to create, access, transmit, or store information. Such information is accessible to CenseoHealth even if it is password-protected or deleted by the user.

Censeo Compliance Management

Censeo has appointed a Compliance Manager who is responsible for developing, implementing and enforcing Censeo's Compliance Program. This includes monitoring compliance with all applicable laws, the Code of Conduct and Standards of Compliance.

CenseoHealth physicians and employees are expected to report all violations of the Code of Conduct and Standards of Compliance to the Compliance Manager, and must cooperate with investigations of violations. In addition, Censeo physicians and employees may request assistance from the Compliance Manager on any matter related to the compliance program, including explanation and interpretation of requirements.

Reporting is a sensitive matter, and Censeo's Compliance Manager will make every effort to maintain the confidentiality and protect the identity of reporting employees. Disclosure will be necessary only to the extent required to complete investigations, or if required by law or legal process. CenseoHealth also has an anonymous drop box where employees or Physician may report compliance concerns. To report concerns mail a written statement of your concern to

When a violation is reported, the Compliance Manager will conduct a full review and investigation. If warranted, Censeo will take whatever corrective action is necessary to ensure that similar violations do not occur in the future.

Discipline

Anyone who violates the Code of Conduct or Standards of Compliance is subject to disciplinary action. In addition, anyone who knowingly fails to report violations, fails to detect a violation attributable to the employee's negligence or reckless conduct or any supervisor who fails to oversee compliance by those he or she supervises is subject to disciplinary action.

Discipline can range from a warning to suspension or discharge, at the recommendation of the Compliance Manager in accordance with employment laws and regulations. Violations also may result in criminal referral and reports to law enforcement and government agencies.

Any employee who harasses or threatens an employee for reporting violations will be discharged. Censeo will not tolerate such misconduct.

Rights of an Employee Accused of a Violation

Any employee accused of a violation will be treated with fairness and with a presumption of proper conduct.

Ensuring Compliance

Training regarding this Code of Conduct and the Standards of Compliance will be provided on a regular basis. Censeo physicians and employees who need additional assistance in understanding this Code of Conduct and the Standards of Compliance should contact the Compliance Manager or a supervisor.

CERTIFICATION

I, ______________________, do hereby certify that I have read and reviewed the Censeo Code of Conduct. I understand the content of the Code as it applies to me and I am fully aware that I must comply with the standards set forth in the Compliance Program or face disciplinary action.
I will cooperate fully and to the extent necessary or helpful to ensure that the Code of Conduct is followed.
I understand and acknowledge that, unless specifically provided otherwise in a written employment agreement with CenseoHealth; my employment is at-will and may be terminated at any time, with or without reason, with or without notice. I also understand that neither the Censeo Code of Conduct nor Censeo's compliance program creates an employment contract, in whole or implied, between Censeo and any employee.

Signature: _________________________

Name: ____________________________

Department: _______________________

Position: __________________________

Date: _____________________________

NOTICE TO EMPLOYEES

How can I report fraud, waste, and abuse about an HHS program?
Complaints of possible fraud, waste, and abuse can be reported to the Inspector General's Hotline. There are several ways to contact the Hotline:

- **Toll-free phone:** 1-800-HHS-TIPS (1-800-447-8477), 8:00 am - 5:30 pm, Eastern Time, Monday-Friday
- **Fax:** 1-800-223-8164 (10 pages or less, please)
- **TTY:** 1-800-377-4950
- **E-mail:** hhstips@oig.hhs.gov
- **Mail:** HHS TIPS Hotline
  P.O. Box 23489
  Washington, DC 20026
  (Note: please do not send any original documents)

You can also access the OIG Hotline guide for filing a complaint by going to the OIG Web site at http://oig.hhs.gov/fraud/hotline/.

For security reasons, the Inspector General staff cannot offer a face-to-face interview.

-OR-

Anonymously report violations in written format to the CenseoHealth Compliance Manager by mailing to:

Compliance
8409 Pickwick Ln. #241
Dallas, TX 75225

Form **W-9**
(Rev. August 2013)
Department of the Treasury
Internal Revenue Service

Request for Taxpayer Identification Number and Certification

Give Form to the requester. Do not send to the IRS.

Print or type
See Specific Instructions on page 2.

Name (as shown on your income tax return)

Business name/disregarded entity name, if different from above

Check appropriate box for federal tax classification:
☐ Individual/sole proprietor ☐ C Corporation ☐ S Corporation ☐ Partnership ☐ Trust/estate

☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=partnership) ▶ ______

☐ Other (see instructions) ▶

Exemptions (see instructions):
Exempt payee code (if any) ______
Exemption from FATCA reporting code (if any) ______

Address (number, street, and apt. or suite no.)

Requester's name and address (optional)

City, state, and ZIP code

List account number(s) here (optional)

Part I **Taxpayer Identification Number (TIN)**

Enter your TIN in the appropriate box. The TIN provided must match the name given on the "Name" line to avoid backup withholding. For individuals, this is your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the Part I instructions on page 3. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN* on page 3.

Note. If the account is in more than one name, see the chart on page 4 for guidelines on whose number to enter.

Social security number
☐☐☐ – ☐☐ – ☐☐☐☐

Employer identification number
☐☐ – ☐☐☐☐☐☐☐

Part II **Certification**

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and
3. I am a U.S. citizen or other U.S. person (defined below), and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions on page 3.

Sign Here **Signature of U.S. person ▶** **Date ▶**

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. The IRS has created a page on IRS.gov for information about Form W-9, at *www.irs.gov/w9*. Information about any future developments affecting Form W-9 (such as legislation enacted after we release it) will be posted on that page.

Purpose of Form

A person who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) to report, for example, income paid to you, payments made to you in settlement of payment card and third party network transactions, real estate transactions, mortgage interest you paid, acquisition or abandonment of secured property, cancellation of debt, or contributions you made to an IRA.

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN to the person requesting it (the requester) and, when applicable, to:

1. Certify that the TIN you are giving is correct (or you are waiting for a number to be issued),

2. Certify that you are not subject to backup withholding, or

3. Claim exemption from backup withholding if you are a U.S. exempt payee. If applicable, you are also certifying that as a U.S. person, your allocable share of any partnership income from a U.S. trade or business is not subject to the withholding tax on foreign partners' share of effectively connected income, and

4. Certify that FATCA code(s) entered on this form (if any) indicating that you are exempt from the FATCA reporting, is correct.

Note. If you are a U.S. person and a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.

Definition of a U.S. person. For federal tax purposes, you are considered a U.S. person if you are:

- An individual who is a U.S. citizen or U.S. resident alien,
- A partnership, corporation, company, or association created or organized in the United States or under the laws of the United States,
- An estate (other than a foreign estate), or
- A domestic trust (as defined in Regulations section 301.7701-7).

Special rules for partnerships. Partnerships that conduct a trade or business in the United States are generally required to pay a withholding tax under section 1446 on any foreign partners' share of effectively connected taxable income from such business. Further, in certain cases where a Form W-9 has not been received, the rules under section 1446 require a partnership to presume that a partner is a foreign person, and pay the section 1446 withholding tax. Therefore, if you are a U.S. person that is a partner in a partnership conducting a trade or business in the United States, provide Form W-9 to the partnership to establish your U.S. status and avoid section 1446 withholding on your share of partnership income.

In the cases below, the following person must give Form W-9 to the partnership for purposes of establishing its U.S. status and avoiding withholding on its allocable share of net income from the partnership conducting a trade or business in the United States:

- In the case of a disregarded entity with a U.S. owner, the U.S. owner of the disregarded entity and not the entity,
- In the case of a grantor trust with a U.S. grantor or other U.S. owner, generally, the U.S. grantor or other U.S. owner of the grantor trust and not the trust, and
- In the case of a U.S. trust (other than a grantor trust), the U.S. trust (other than a grantor trust) and not the beneficiaries of the trust.

Foreign person. If you are a foreign person or the U.S. branch of a foreign bank that has elected to be treated as a U.S. person, do not use Form W-9. Instead, use the appropriate Form W-8 or Form 8233 (see Publication 515, Withholding of Tax on Nonresident Aliens and Foreign Entities).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a "saving clause." Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the payee has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement to Form W-9 that specifies the following five items:

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.
2. The treaty article addressing the income.
3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.
4. The type and amount of income that qualifies for the exemption from tax.
5. Sufficient facts to justify the exemption from tax under the terms of the treaty article.

Example. Article 20 of the U.S.-China income tax treaty allows an exemption from tax for scholarship income received by a Chinese student temporarily present in the United States. Under U.S. law, this student will become a resident alien for tax purposes if his or her stay in the United States exceeds 5 calendar years. However, paragraph 2 of the first Protocol to the U.S.-China treaty (dated April 30, 1984) allows the provisions of Article 20 to continue to apply even after the Chinese student becomes a resident alien of the United States. A Chinese student who qualifies for this exception (under paragraph 2 of the first protocol) and is relying on this exception to claim an exemption from tax on his or her scholarship or fellowship income would attach to Form W-9 a statement that includes the information described above to support that exemption.

If you are a nonresident alien or a foreign entity, give the requester the appropriate completed Form W-8 or Form 8233.

What is backup withholding? Persons making certain payments to you must under certain conditions withhold and pay to the IRS a percentage of such payments. This is called "backup withholding." Payments that may be subject to backup withholding include interest, tax-exempt interest, dividends, broker and barter exchange transactions, rents, royalties, nonemployee pay, payments made in settlement of payment card and third party network transactions, and certain payments from fishing boat operators. Real estate transactions are not subject to backup withholding.

You will not be subject to backup withholding on payments you receive if you give the requester your correct TIN, make the proper certifications, and report all your taxable interest and dividends on your tax return.

Payments you receive will be subject to backup withholding if:

1. You do not furnish your TIN to the requester,
2. You do not certify your TIN when required (see the Part II instructions on page 3 for details),
3. The IRS tells the requester that you furnished an incorrect TIN,
4. The IRS tells you that you are subject to backup withholding because you did not report all your interest and dividends on your tax return (for reportable interest and dividends only), or
5. You do not certify to the requester that you are not subject to backup withholding under 4 above (for reportable interest and dividend accounts opened after 1983 only).

Certain payees and payments are exempt from backup withholding. See *Exempt payee code* on page 3 and the separate Instructions for the Requester of Form W-9 for more information.

Also see *Special rules for partnerships* on page 1.

What is FATCA reporting? The Foreign Account Tax Compliance Act (FATCA) requires a participating foreign financial institution to report all United States account holders that are specified United States persons. Certain payees are exempt from FATCA reporting. See *Exemption from FATCA reporting code* on page 3 and the Instructions for the Requester of Form W-9 for more information.

Updating Your Information

You must provide updated information to any person to whom you claimed to be an exempt payee if you are no longer an exempt payee and anticipate receiving reportable payments in the future from this person. For example, you may need to provide updated information if you are a C corporation that elects to be an S corporation, or if you no longer are tax exempt. In addition, you must furnish a new Form W-9 if the name or TIN changes for the account, for example, if the grantor of a grantor trust dies.

Penalties

Failure to furnish TIN. If you fail to furnish your correct TIN to a requester, you are subject to a penalty of $50 for each such failure unless your failure is due to reasonable cause and not to willful neglect.

Civil penalty for false information with respect to withholding. If you make a false statement with no reasonable basis that results in no backup withholding, you are subject to a $500 penalty.

Criminal penalty for falsifying information. Willfully falsifying certifications or affirmations may subject you to criminal penalties including fines and/or imprisonment.

Misuse of TINs. If the requester discloses or uses TINs in violation of federal law, the requester may be subject to civil and criminal penalties.

Specific Instructions

Name

If you are an individual, you must generally enter the name shown on your income tax return. However, if you have changed your last name, for instance, due to marriage without informing the Social Security Administration of the name change, enter your first name, the last name shown on your social security card, and your new last name.

If the account is in joint names, list first, and then circle, the name of the person or entity whose number you entered in Part I of the form.

Sole proprietor. Enter your individual name as shown on your income tax return on the "Name" line. You may enter your business, trade, or "doing business as (DBA)" name on the "Business name/disregarded entity name" line.

Partnership, C Corporation, or S Corporation. Enter the entity's name on the "Name" line and any business, trade, or "doing business as (DBA) name" on the "Business name/disregarded entity name" line.

Disregarded entity. For U.S. federal tax purposes, an entity that is disregarded as an entity separate from its owner is treated as a "disregarded entity." See Regulation section 301.7701-2(c)(2)(iii). Enter the owner's name on the "Name" line. The name of the entity entered on the "Name" line should never be a disregarded entity. The name on the "Name" line must be the name shown on the income tax return on which the income should be reported. For example, if a foreign LLC that is treated as a disregarded entity for U.S. federal tax purposes has a single owner that is a U.S. person, the U.S. owner's name is required to be provided on the "Name" line. If the direct owner of the entity is also a disregarded entity, enter the first owner that is not disregarded for federal tax purposes. Enter the disregarded entity's name on the "Business name/disregarded entity name" line. If the owner of the disregarded entity is a foreign person, the owner must complete an appropriate Form W-8 instead of a Form W-9. This is the case even if the foreign person has a U.S. TIN.

Note. Check the appropriate box for the U.S. federal tax classification of the person whose name is entered on the "Name" line (Individual/sole proprietor, Partnership, C Corporation, S Corporation, Trust/estate).

Limited Liability Company (LLC). If the person identified on the "Name" line is an LLC, check the "Limited liability company" box only and enter the appropriate code for the U.S. federal tax classification in the space provided. If you are an LLC that is treated as a partnership for U.S. federal tax purposes, enter "P" for partnership. If you are an LLC that has filed a Form 8832 or a Form 2553 to be taxed as a corporation, enter "C" for C corporation or "S" for S corporation, as appropriate. If you are an LLC that is disregarded as an entity separate from its owner under Regulation section 301.7701-3 (except for employment and excise tax), do not check the LLC box unless the owner of the LLC (required to be identified on the "Name" line) is another LLC that is not disregarded for U.S. federal tax purposes. If the LLC is disregarded as an entity separate from its owner, enter the appropriate tax classification of the owner identified on the "Name" line.

Other entities. Enter your business name as shown on required U.S. federal tax documents on the "Name" line. This name should match the name shown on the charter or other legal document creating the entity. You may enter any business, trade, or DBA name on the "Business name/disregarded entity name" line.

Exemptions

If you are exempt from backup withholding and/or FATCA reporting, enter in the *Exemptions* box, any code(s) that may apply to you. See *Exempt payee code* and *Exemption from FATCA reporting code* on page 3.

Exempt payee code. Generally, individuals (including sole proprietors) are not exempt from backup withholding. Corporations are exempt from backup withholding for certain payments, such as interest and dividends. Corporations are not exempt from backup withholding for payments made in settlement of payment card or third party network transactions.

Note. If you are exempt from backup withholding, you should still complete this form to avoid possible erroneous backup withholding.

The following codes identify payees that are exempt from backup withholding:

1—An organization exempt from tax under section 501(a), any IRA, or a custodial account under section 403(b)(7) if the account satisfies the requirements of section 401(f)(2)

2—The United States or any of its agencies or instrumentalities

3—A state, the District of Columbia, a possession of the United States, or any of their political subdivisions or instrumentalities

4—A foreign government or any of its political subdivisions, agencies, or instrumentalities

5—A corporation

6—A dealer in securities or commodities required to register in the United States, the District of Columbia, or a possession of the United States

7—A futures commission merchant registered with the Commodity Futures Trading Commission

8—A real estate investment trust

9—An entity registered at all times during the tax year under the Investment Company Act of 1940

10—A common trust fund operated by a bank under section 584(a)

11—A financial institution

12—A middleman known in the investment community as a nominee or custodian

13—A trust exempt from tax under section 664 or described in section 4947

The following chart shows types of payments that may be exempt from backup withholding. The chart applies to the exempt payees listed above, 1 through 13.

IF the payment is for . . .	THEN the payment is exempt for . . .
Interest and dividend payments	All exempt payees except for 7
Broker transactions	Exempt payees 1 through 4 and 6 through 11 and all C corporations. S corporations must not enter an exempt payee code because they are exempt only for sales of noncovered securities acquired prior to 2012.
Barter exchange transactions and patronage dividends	Exempt payees 1 through 4
Payments over $600 required to be reported and direct sales over $5,000[1]	Generally, exempt payees 1 through 5[2]
Payments made in settlement of payment card or third party network transactions	Exempt payees 1 through 4

[1] See Form 1099-MISC, Miscellaneous Income, and its instructions.

[2] However, the following payments made to a corporation and reportable on Form 1099-MISC are not exempt from backup withholding: medical and health care payments, attorneys' fees, gross proceeds paid to an attorney, and payments for services paid by a federal executive agency.

Exemption from FATCA reporting code. The following codes identify payees that are exempt from reporting under FATCA. These codes apply to persons submitting this form for accounts maintained outside of the United States by certain foreign financial institutions. Therefore, if you are only submitting this form for an account you hold in the United States, you may leave this field blank. Consult with the person requesting this form if you are uncertain if the financial institution is subject to these requirements.

A—An organization exempt from tax under section 501(a) or any individual retirement plan as defined in section 7701(a)(37)

B—The United States or any of its agencies or instrumentalities

C—A state, the District of Columbia, a possession of the United States, or any of their political subdivisions or instrumentalities

D—A corporation the stock of which is regularly traded on one or more established securities markets, as described in Reg. section 1.1472-1(c)(1)(i)

E—A corporation that is a member of the same expanded affiliated group as a corporation described in Reg. section 1.1472-1(c)(1)(i)

F—A dealer in securities, commodities, or derivative financial instruments (including notional principal contracts, futures, forwards, and options) that is registered as such under the laws of the United States or any state

G—A real estate investment trust

H—A regulated investment company as defined in section 851 or an entity registered at all times during the tax year under the Investment Company Act of 1940

I—A common trust fund as defined in section 584(a)

J—A bank as defined in section 581

K—A broker

L—A trust exempt from tax under section 664 or described in section 4947(a)(1)

M—A tax exempt trust under a section 403(b) plan or section 457(g) plan

Part I. Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. If you are a resident alien and you do not have and are not eligible to get an SSN, your TIN is your IRS individual taxpayer identification number (ITIN). Enter it in the social security number box. If you do not have an ITIN, see *How to get a TIN* below.

If you are a sole proprietor and you have an EIN, you may enter either your SSN or EIN. However, the IRS prefers that you use your SSN.

If you are a single-member LLC that is disregarded as an entity separate from its owner (see *Limited Liability Company (LLC)* on page 2), enter the owner's SSN (or EIN, if the owner has one). Do not enter the disregarded entity's EIN. If the LLC is classified as a corporation or partnership, enter the entity's EIN.

Note. See the chart on page 4 for further clarification of name and TIN combinations.

How to get a TIN. If you do not have a TIN, apply for one immediately. To apply for an SSN, get Form SS-5, Application for a Social Security Card, from your local Social Security Administration office or get this form online at *www.ssa.gov*. You may also get this form by calling 1-800-772-1213. Use Form W-7, Application for IRS Individual Taxpayer Identification Number, to apply for an ITIN, or Form SS-4, Application for Employer Identification Number, to apply for an EIN. You can apply for an EIN online by accessing the IRS website at *www.irs.gov/businesses* and clicking on Employer Identification Number (EIN) under Starting a Business. You can get Forms W-7 and SS-4 from the IRS by visiting IRS.gov or by calling 1-800-TAX-FORM (1-800-829-3676).

If you are asked to complete Form W-9 but do not have a TIN, apply for a TIN and write "Applied For" in the space for the TIN, sign and date the form, and give it to the requester. For interest and dividend payments, and certain payments made with respect to readily tradable instruments, generally you will have 60 days to get a TIN and give it to the requester before you are subject to backup withholding on payments. The 60-day rule does not apply to other types of payments. You will be subject to backup withholding on all such payments until you provide your TIN to the requester.

Note. Entering "Applied For" means that you have already applied for a TIN or that you intend to apply for one soon.

Caution: *A disregarded U.S. entity that has a foreign owner must use the appropriate Form W-8.*

Part II. Certification

To establish to the withholding agent that you are a U.S. person, or resident alien, sign Form W-9. You may be requested to sign by the withholding agent even if items 1, 4, or 5 below indicate otherwise.

For a joint account, only the person whose TIN is shown in Part I should sign (when required). In the case of a disregarded entity, the person identified on the "Name" line must sign. Exempt payees, see *Exempt payee code* earlier.

Signature requirements. Complete the certification as indicated in items 1 through 5 below.

1. Interest, dividend, and barter exchange accounts opened before 1984 and broker accounts considered active during 1983. You must give your correct TIN, but you do not have to sign the certification.

2. Interest, dividend, broker, and barter exchange accounts opened after 1983 and broker accounts considered inactive during 1983. You must sign the certification or backup withholding will apply. If you are subject to backup withholding and you are merely providing your correct TIN to the requester, you must cross out item 2 in the certification before signing the form.

3. Real estate transactions. You must sign the certification. You may cross out item 2 of the certification.

4. Other payments. You must give your correct TIN, but you do not have to sign the certification unless you have been notified that you have previously given an incorrect TIN. "Other payments" include payments made in the course of the requester's trade or business for rents, royalties, goods (other than bills for merchandise), medical and health care services (including payments to corporations), payments to a nonemployee for services, payments made in settlement of payment card and third party network transactions, payments to certain fishing boat crew members and fishermen, and gross proceeds paid to attorneys (including payments to corporations).

5. Mortgage interest paid by you, acquisition or abandonment of secured property, cancellation of debt, qualified tuition program payments (under section 529), IRA, Coverdell ESA, Archer MSA or HSA contributions or distributions, and pension distributions. You must give your correct TIN, but you do not have to sign the certification.

What Name and Number To Give the Requester

For this type of account:	Give name and SSN of:
1. Individual	The individual
2. Two or more individuals (joint account)	The actual owner of the account or, if combined funds, the first individual on the account [1]
3. Custodian account of a minor (Uniform Gift to Minors Act)	The minor [2]
4. a. The usual revocable savings trust (grantor is also trustee)	The grantor-trustee [1]
b. So-called trust account that is not a legal or valid trust under state law	The actual owner [1]
5. Sole proprietorship or disregarded entity owned by an individual	The owner [3]
6. Grantor trust filing under Optional Form 1099 Filing Method 1 (see Regulation section 1.671-4(b)(2)(i)(A))	The grantor*
For this type of account:	**Give name and EIN of:**
7. Disregarded entity not owned by an individual	The owner
8. A valid trust, estate, or pension trust	Legal entity [4]
9. Corporation or LLC electing corporate status on Form 8832 or Form 2553	The corporation
10. Association, club, religious, charitable, educational, or other tax-exempt organization	The organization
11. Partnership or multi-member LLC	The partnership
12. A broker or registered nominee	The broker or nominee
13. Account with the Department of Agriculture in the name of a public entity (such as a state or local government, school district, or prison) that receives agricultural program payments	The public entity
14. Grantor trust filing under the Form 1041 Filing Method or the Optional Form 1099 Filing Method 2 (see Regulation section 1.671-4(b)(2)(i)(B))	The trust

[1] List first and circle the name of the person whose number you furnish. If only one person on a joint account has an SSN, that person's number must be furnished.

[2] Circle the minor's name and furnish the minor's SSN.

[3] You must show your individual name and you may also enter your business or "DBA" name on the "Business name/disregarded entity" name line. You may use either your SSN or EIN (if you have one), but the IRS encourages you to use your SSN.

[4] List first and circle the name of the trust, estate, or pension trust. (Do not furnish the TIN of the personal representative or trustee unless the legal entity itself is not designated in the account title.) Also see *Special rules for partnerships* on page 1.

***Note.** Grantor also must provide a Form W-9 to trustee of trust.

Note. If no name is circled when more than one name is listed, the number will be considered to be that of the first name listed.

Secure Your Tax Records from Identity Theft

Identity theft occurs when someone uses your personal information such as your name, social security number (SSN), or other identifying information, without your permission, to commit fraud or other crimes. An identity thief may use your SSN to get a job or may file a tax return using your SSN to receive a refund.

To reduce your risk:

- Protect your SSN,
- Ensure your employer is protecting your SSN, and
- Be careful when choosing a tax preparer.

If your tax records are affected by identity theft and you receive a notice from the IRS, respond right away to the name and phone number printed on the IRS notice or letter.

If your tax records are not currently affected by identity theft but you think you are at risk due to a lost or stolen purse or wallet, questionable credit card activity or credit report, contact the IRS Identity Theft Hotline at 1-800-908-4490 or submit Form 14039.

For more information, see Publication 4535, Identity Theft Prevention and Victim Assistance.

Victims of identity theft who are experiencing economic harm or a system problem, or are seeking help in resolving tax problems that have not been resolved through normal channels, may be eligible for Taxpayer Advocate Service (TAS) assistance. You can reach TAS by calling the TAS toll-free case intake line at 1-877-777-4778 or TTY/TDD 1-800-829-4059.

Protect yourself from suspicious emails or phishing schemes. Phishing is the creation and use of email and websites designed to mimic legitimate business emails and websites. The most common act is sending an email to a user falsely claiming to be an established legitimate enterprise in an attempt to scam the user into surrendering private information that will be used for identity theft.

The IRS does not initiate contacts with taxpayers via emails. Also, the IRS does not request personal detailed information through email or ask taxpayers for the PIN numbers, passwords, or similar secret access information for their credit card, bank, or other financial accounts.

If you receive an unsolicited email claiming to be from the IRS, forward this message to *phishing@irs.gov*. You may also report misuse of the IRS name, logo, or other IRS property to the Treasury Inspector General for Tax Administration at 1-800-366-4484. You can forward suspicious emails to the Federal Trade Commission at: *spam@uce.gov* or contact them at *www.ftc.gov/idtheft* or 1-877-IDTHEFT (1-877-438-4338).

Visit IRS.gov to learn more about identity theft and how to reduce your risk.

Privacy Act Notice

Section 6109 of the Internal Revenue Code requires you to provide your correct TIN to persons (including federal agencies) who are required to file information returns with the IRS to report interest, dividends, or certain other income paid to you; mortgage interest you paid; the acquisition or abandonment of secured property; the cancellation of debt; or contributions you made to an IRA, Archer MSA, or HSA. The person collecting this form uses the information on the form to file information returns with the IRS, reporting the above information. Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation and to cities, states, the District of Columbia, and U.S. commonwealths and possessions for use in administering their laws. The information also may be disclosed to other countries under a treaty, to federal and state agencies to enforce civil and criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism. You must provide your TIN whether or not you are required to file a tax return. Under section 3406, payers must generally withhold a percentage of taxable interest, dividend, and certain other payments to a payee who does not give a TIN to the payer. Certain penalties may also apply for providing false or fraudulent information.

Direct Deposit Set-Up Form

Personal Information

Name: ____

Address: ____

City, State, Zip: ____

Account Information

Bank Name: ____

Branch Address: ____

Branch City, State, Zip: ____

Routing Number: ____

Account Number: ____

Deposit To:

- ☐ Checking
- ☐ Savings

Agreement

I authorize CenseoHealth to automatically deposit my reimbursement check into my account listed above. (This includes authorization to correct any entries made in error.) This authorization will remain in effect until I give written notice to cancel it.

____ ______________________

Signature Date

** Please fax the completed form along with a VOID check to 888.722 4282**

4055 Valley View Lane, Suite 400, Dallas, TX 75244| P: 972.715.3800